

24STCV33307 24STCV33307

County: los-angeles

Division: Civil Law and Motion

Department: 511

Hearing date: 2026-09-14

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C511%2C09%2F14%2F2026

Source SHA-256: 02bb1f7f00af8643f4cb25565ac22e9e0d80a8e52e144d727000283330cbc484

Case Number: 24STCV33307 Hearing Date: September 14, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: September

14, 2026

CASE NAME: Morning

Star, LLC, et al. v. Sea Star Estates Homeowners Association, et al.

CASE NO.: 24STCV33307

MOTION

TO QUASH SUBPOENA

MOVING PARTY: Defendant

Sea Star Estates Homeowners Association

RESPONDING PARTY(S): Plaintiff Morning Star, LLC

REQUESTED RELIEF:

1. An

order quashing and/or modifying the deposition subpoena for production of business records directed to third party Stacie Vince such that emails with Sea Star Estate's counsel are not produced.

TENTATIVE RULING:

1. Motion

to quash is GRANTED.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On December 17, 2024, Plaintiffs Morning Star, LLC and Patrick Nazemi (Plaintiffs) filed a Complaint against Defendants Sea Star Estates Homeowners Association, Hovsep Kouzouyan, Hedayat Ahmadpour, and Claire Cabrey (Defendants) with eleven causes of action for: (1) Violation of Civ. Code § 5100(a)(2); (2) Violation of Civ. Code §§ 5500 and 5501; (3) Breach of Bylaws; (4) Declaratory Relief (Derivative Cause of Action); (5) Fraud (Derivative Cause of Action); (6) Fraud; (7) Trespass; (8) Trespass to Timber; (9) Negligence; (10) Intentional Infliction of Emotional Distress; and (11) Negligent Infliction of Emotional Distress.

According to the Complaint, Plaintiff Morning Star owns property, where Plaintiff Nazemi resides, located at 6368 Sea Star Drive, Malibu, California (the Property) in the Sea Star Estates subdivision. Plaintiffs allege that Defendant Sea Star violated various Civil Code sections pertaining to HOA Board elections, that the individual defendants hold themselves out as validly elected Board members or agents when they are not, fraudulently enter contracts, fraudulently approve architectural plans, allowed another property owner to cut down Plaintiffs' trees, change the gate codes, prohibit access to tennis courts, and otherwise frustrate Plaintiffs' use of the Property.

On February 14, 2025, Defendants Hovsep Kouzouyan and Hedayat Ahmadpour (K&A) filed a demurrer to the Complaint which the court OVERRULED as to the Seventh and Eighth Causes of Action and SUSTAINED as to the Fourth, Fifth, Sixth, Ninth, Tenth, and Eleventh Causes of Action with 21 days' leave to amend.

On March 18, 2025, Plaintiff filed a Motion re: Appointment of Receiver for Sea State Estates Home Owners Association which the court GRANTED.

On March 24, 2025, Defendants Sea Star Estates Homeowners

Association and Claire Cabrey (Sea Star Estates) filed a demurrer with motion to strike that was mooted due to the court's ruling on K&A's demurrer.

On June 10, 2025, Plaintiffs filed the operative First Amended Complaint (FAC).

On July 14, 2025, Sea Star Estates filed a demurrer with motion to strike to the FAC.

On July 29, 2025, K&A filed their demurrer to the FAC.

On September 4, 2025, the court ruled on the demurrers with motions to strike as follows: Demurrers to the Fourth, Fifth, Sixth, Seventh, Eighth, and Eleventh Causes of Action are OVERRULED, in part but the Fourth Cause of Action is SUSTAINED as to Cabrey only; Demurrers to the Ninth, Tenth, and Eleventh Causes of Action are OVERRULED as to Plaintiff Morning Star, LLC and SUSTAINED without leave to amend as Nazemi only; Motion to Strike is GRANTED in part as to Page 16, line 27-28, Paragraph 89: "As such, Plaintiffs are entitled to exemplary damages pursuant to Code of Civil Procedure section 3294 for sake of example to punish Defendants" and Page 23, line 25: "2. Exemplary Damages pursuant to Civil Code section 3294." The Motion to Strike is otherwise DENIED.

On September 17, 2025, K&A filed an Answer to the FAC.

On September 18, 2025, Defendants Sea Star Estates and Cabrey filed an Answer to the FAC.

On November 18, 2025, Proposed Plaintiffs-in-Intervention Keith B. Canter and Karen Elise Schoen, Trustees of the Canter Schoen Family Trust U/T/D March 17, 2015 (Intervenors) filed a motion for leave to intervene which the court GRANTED.

On December 2, 2025, Plaintiffs filed a motion for leave to file an amended complaint which the court DENIED.

On January 22, 2026, Intervenor filed a notice of related case to Case No. 26SMCV00214 Keith B. Canter v. Sea Star Estates Homeowners Association which the court GRANTED.

On January 27, 2026, Intervenor filed an amended notice of related case which the court GRANTED.

On June 1, 2026, Sea Star filed the instant motion to quash.

On June 1, 2026, Non-party Stacey Vince filed a response to Sea Star's motion to quash indicating she would not produce documents until the outcome of the motion to quash. On July 2, 2026, Plaintiff filed an opposition. On August 7, 2026, Sea Star filed a reply.

LEGAL STANDARD:

A party may bring a motion for an "order quashing the subpoena [for production of documents] entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders." (Code Civ. Proc. § 1987.1(a), (b)(1).)

ANALYSIS:

Sea Star estates contends the motion is timely, the majority of the records sought contain attorney-client privileged and work-product protected emails, and there is no waiver.^[1]

Plaintiff argues the privileges do not apply because Ms. Vince was never a board member or agent of Sea Star. Plaintiff adds that Sea Star already expressly and voluntarily waived the attorney-client privilege as to their communications with Gary Gitlin in written discovery. As to work-product protection, Plaintiff argues Sea Star is entitled, at most, to a privilege log, but otherwise asserts that this objection was waived.

Sea Star replies that she was treated as a board member, was acting in concert with board members to support the interests of the association, Sea Star did not waive privilege, limited document production is not wholesale waiver, and they do not object to a privilege log.

However, there is a threshold issue that is dispositive. Code

of Civil Procedure section 1985(b) requires that a subpoena duces tecum issued before trial be accompanied by an affidavit showing good cause for production and setting forth in full detail the materiality of the requested documents to the issues in the action. The affidavit must provide specific facts sufficient to permit the court to determine good cause and materiality; conclusory assertions are insufficient. (Lee v.

Superior Court (2009) 177 Cal.App.4th 1108, 1127–1128; Johnson v. Superior Court (1968) 258 Cal.App.2d 829, 835–837; McClatchy Newspapers v. Superior Court (1945) 26 Cal.2d 386, 396, 398.)

Plaintiff, the party issuing the subpoena, has neither attached nor presented an affidavit satisfying section 1985(b). Indeed, the absence of an affidavit presents a more fundamental defect than an affidavit containing an inadequate factual showing. A subpoena duces tecum has “no force or effect” where the affidavit required by section 1985 fails to comply with the statute. (Johnson, supra, 258 Cal.App.2d at p. 835.)

Without the required affidavit, the court lacks the factual showing necessary to determine whether the documents sought are material to the issues or whether good cause exists for their production. (Id. at p. 837.) The court therefore does not reach the parties' remaining arguments concerning the merits of the subpoena.

The subpoena is QUASHED pursuant to Code of Civil Procedure section 1987.1.

Accordingly, the court GRANTS Sea Star's motion to quash.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Motion to quash is GRANTED.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: September 14, 2026 _____ Upinder

S. Kalra

Judge
of the Superior Court

[1]

The parties do not dispute timeliness or relevance. The court therefore declines to address those arguments, too.